

GOVERNMENT HACK · TROOPTOTEACHER TECHNOLOGIES

Foundations of Constitutional Government

United States Government & Civics (GC) · Unit 1 · GC.01–GC.09

“How does Congress represent the people — and where do its powers begin and end?”

Grades 9–12 · Suggested 15–17 days · Supplemental under TCA § 49-6-2202(a)(3)

Essential Question: How does Congress represent the people — and where do its powers begin and end?

GC.35

Citizenship & Naturalization

GC.10

Article I & the 17th Amendment

GC.11

Census, Redistricting & Baker v. Carr

GC.12

Leadership of Congress

GC.13

How a Bill Becomes a Law

GC.14

Tennessee's Delegation to Congress

GC.15

The Powers of Congress

Citizenship & Naturalization

Learning target: I can explain who is a natural-born U.S. citizen and describe the process of naturalization.

PRIMARY SOURCE



Immigrants at Ellis Island (c.1913): the doorway to naturalized citizenship — the process Congress controls under Article I.

“The Congress shall have Power... To establish an uniform Rule of Naturalization.” — Constitutional Convention, U.S. Constitution, Article I, Section 8 (1787)

Inspectors examining eyes of immigrants, Ellis Island • LOC (c.1913) • Wikimedia Commons

HOOK

You could be asked the same civics question a new citizen must answer to be sworn in. Could you pass the test to join the country you already live in?

KEY VOCABULARY

Natural-Born Citizen /NATCH-rul born SIT-ih-zen/

ciudadano por nacimiento

A person who is a U.S. citizen at birth — by being born in the U.S. or, in most cases, to U.S.-citizen parents; a requirement to be President.

CHECK FOR UNDERSTANDING • DOK 2

Which power does the Constitution give to Congress regarding citizenship?

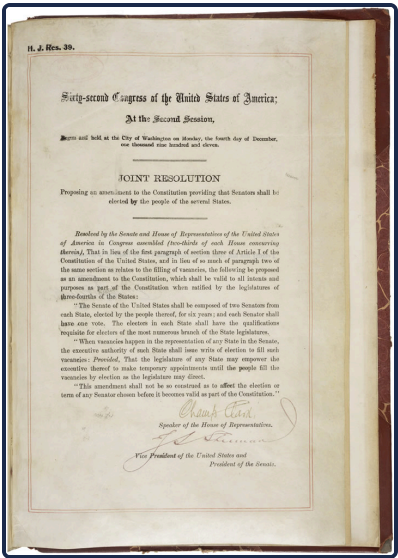
- A To choose which states may grant citizenship
- B To deny citizenship to anyone born in the U.S.
- C ✓ To establish a uniform rule of naturalization**
- D To require every citizen to pass the Naturalization Test

Answer: C. DOK 2: Article I, Section 8 gives Congress the power 'to establish an uniform Rule of Naturalization,' so the rules for becoming a citizen are the same nationwide.

Article I & the 17th Amendment

Learning target: I can analyze Article I and the 17th Amendment — the qualifications, terms, and election of members of the House and Senate.

PRIMARY SOURCE



The 17th Amendment (1913): the moment U.S. senators became elected directly by the people instead of by state legislatures.

“The Senate of the United States shall be composed of two Senators from each State, elected by the people thereof, for six years.” — 62nd U.S. Congress, U.S. Constitution, Amendment XVII (1913)

17th Amendment — Direct Election of Senators (1913) · U.S. Congress (NARA) (1913) · Wikimedia Commons

HOOK

One chamber turns over every two years; the other moves at a six-year pace and once answered to state politicians, not voters. Why build Congress out of two such different halves?

KEY VOCABULARY

Bicameral /by-KAM-er-ull/
bicameral

A legislature made of two houses — in Congress, the House of Representatives and the Senate.

CHECK FOR UNDERSTANDING • DOK 2

What key change did the 17th Amendment make to the Senate?

- A ✓** Senators are now elected directly by the people instead of by state legislatures
- B** Senators now serve two-year terms instead of six
- C** The number of senators per state increased to three
- D** The Senate lost its power to confirm appointments

Answer: A. DOK 2: Before 1913, state legislatures chose U.S. senators; the 17th Amendment gave that choice directly to the voters of each state.

Census, Redistricting & Baker v. Carr

Learning target: I can describe the census and its role in reapportionment and redistricting, including the significance of Baker v. Carr.

PRIMARY SOURCE



'The Gerry-Mander' (1812): the original cartoon of a district drawn to win — the line-drawing that Baker v. Carr's era confronted.

"We conclude that the complaint's allegations of a denial of equal protection present a justiciable constitutional cause of action... the right asserted is within the reach of judicial protection under the Fourteenth Amendment." —
U.S. Supreme Court, *Baker v. Carr*, 369 U.S. 186 (1962)

The Gerry-Mander · Elkanah Tisdale (1812) · Wikimedia Commons

HOOK

A vote in Memphis once counted for one-eighth of a vote in the countryside — legally. A Tennessean sued, and changed the country. How?

KEY VOCABULARY

Census /SEN-sus/

censo

The count of the U.S. population taken every ten years, used to apportion House seats and federal funds.

CHECK FOR UNDERSTANDING · DOK 3

Why was Baker v. Carr (1962) so important for representation?

- A It abolished the census
- B It made gerrymandering a federal crime
- C It ended the Senate's six-year terms
- D ✓** It ruled that federal courts could hear redistricting cases, opening the door to 'one person, one vote'

Answer: D. DOK 3: Baker v. Carr held that unequal districts could be challenged in federal court under the 14th Amendment — making reapportionment a justiciable issue and leading to the 'one person, one vote' standard.

Leadership of Congress

Learning target: I can identify the leadership positions in both houses of Congress and explain how each is chosen.

PRIMARY SOURCE



The U.S. Capitol, c.1846 (earliest known photo): home of the House and Senate and their party leadership.

“The House of Representatives shall chuse their Speaker and other Officers.” — Constitutional Convention, U.S. Constitution, Article I, Section 2 (1787)

United States Capitol, c.1846 (Plumbe daguerreotype) · John Plumbe Jr. (c.1846) · Wikimedia Commons

HOOK

One person decides which bills the House will even vote on. Who holds that gatekeeper's gavel — and how did they get it?

KEY VOCABULARY

Speaker of the House /SPEE-ker/

presidente de la Cámara

The leader of the House of Representatives, chosen by the majority party; sets the House agenda and is second in line to the presidency.

CHECK FOR UNDERSTANDING • DOK 2

Who leads the House of Representatives and sets its agenda?

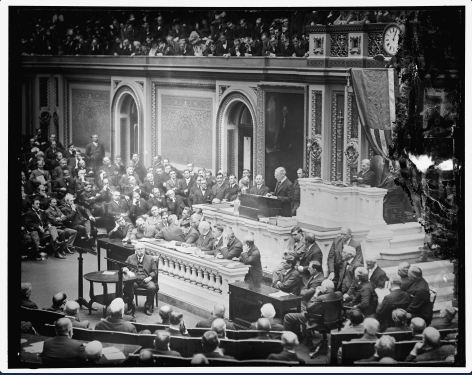
- A The President pro tempore
- B ✓ The Speaker of the House**
- C The Vice President
- D The Chief Justice

Answer: B. DOK 2: The Constitution says the House shall 'chuse their Speaker'; the Speaker, chosen by the majority party, leads the House and controls its agenda.

How a Bill Becomes a Law

Learning target: I can describe how a bill becomes a law, including the differences between the House and Senate processes.

PRIMARY SOURCE



Congress in session: where a bill runs the gauntlet from committee to filibuster to the President's desk.

“Every Bill which shall have passed the House of Representatives and the Senate, shall, before it become a Law, be presented to the President of the United States.” —
Constitutional Convention, U.S. Constitution, Article I, Section 7
(1787)

Congress in session (pre-1929) — bill/legislative process · U.S. Government (1920s) · Wikimedia Commons

HOOK

Thousands of bills are introduced each year; only a few hundred become law. What kills the rest — and why did the Framers make it so hard?

KEY VOCABULARY

Filibuster /FIL-ih-bus-ter/

obstruccionismo

A Senate tactic of extended debate used to delay or block a vote on a bill.

CHECK FOR UNDERSTANDING · DOK 2

A Senate tactic of unlimited debate used to block a bill is a:

A Cloture

B Veto

C ✓ Filibuster

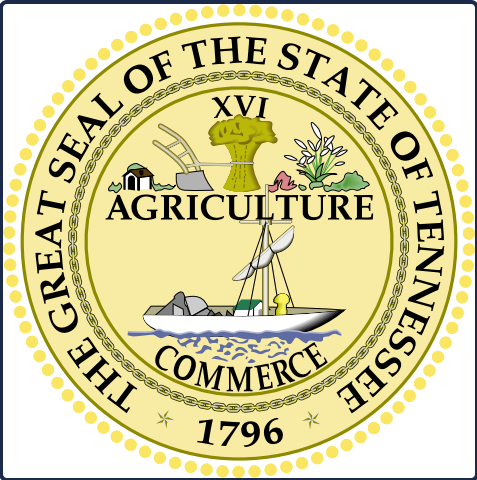
D Quorum

Answer: C. DOK 2: A filibuster uses extended debate to delay or block a Senate vote; it takes a cloture vote (usually 60 senators) to end one.

Tennessee's Delegation to Congress

Learning target: I can identify who represents Tennessee in the U.S. Congress and locate my own congressional district.

PRIMARY SOURCE



The Seal of Tennessee — the state whose two senators and House delegation you can name, locate, and contact.

“Representatives... shall be apportioned among the several States... according to their respective Numbers.” —
Constitutional Convention, U.S. Constitution, Article I, Section 2
(1787)

Seal of Tennessee · State of Tennessee (1802 design) · Wikimedia Commons

HOOK

Two people in Washington are paid to answer to you personally — plus one more for your neighborhood. Do you know their names?

KEY VOCABULARY

Congressional District /kun-GRESH-un-ul/
distrito congresional

A geographic area whose voters elect one member of the U.S. House of Representatives; Tennessee is divided into several.

CHECK FOR UNDERSTANDING · DOK 2

How many U.S. Senators does Tennessee — like every state — send to Congress?

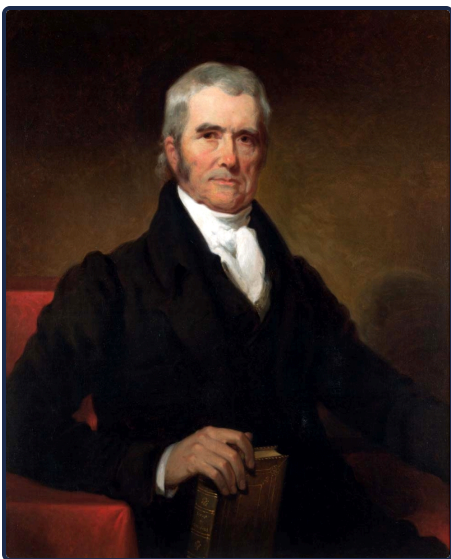
- A ✓** Two
- B** One per congressional district
- C** Based on its population
- D** Ten

Answer: A. DOK 2: The Constitution gives every state exactly two U.S. Senators, regardless of population; a state's number of U.S. Representatives, by contrast, depends on population.

The Powers of Congress

Learning target: I can describe the enumerated and implied powers of Congress, including the Necessary and Proper Clause and McCulloch v. Maryland.

PRIMARY SOURCE



Chief Justice John Marshall, whose *McCulloch v. Maryland* (1819) opinion upheld Congress's implied powers.

"The Congress shall have Power... To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers." — Constitutional Convention, U.S. Constitution, Article I, Section 8 (1787)

Chief Justice John Marshall (*McCulloch v. Maryland*) • (artist unconfirmed) (19th c.) • Wikimedia Commons

HOOK

The Constitution never says Congress can create an air force, a national bank, or the interstate highways — yet it did all three. Where does that

KEY VOCABULARY

Enumerated Powers /ee-NOO-mer-ay-ted/

poderes enumerados

The powers specifically listed for Congress in the Constitution, such as taxing, borrowing, regulating commerce, and declaring war.

CHECK FOR UNDERSTANDING • DOK 3

How did *McCulloch v. Maryland* (1819) affect the powers of Congress?

- A It abolished the Necessary and Proper Clause
- B It limited Congress to only the powers explicitly listed
- C It gave the states power to tax the federal government
- D ✓** It upheld broad implied powers under the Necessary and Proper Clause

Answer: D. DOK 3: Marshall's opinion read the Necessary and Proper Clause broadly — Congress may use any appropriate means to carry out its enumerated powers — establishing implied powers and upholding the national bank.

Who Gets Represented? Perspectives on Congress

Large vs. Small States

The Great Compromise gave every state two senators but seats the House by population — a bargain carried straight from the Constitutional Convention (connects to GC.10, GC.04).

Urban vs. Rural Voters

For decades Tennessee's unequal districts made a rural vote worth many times an urban one, until Baker v. Carr forced 'one person, one vote' (GC.11).

Majority vs. Minority Power

Senate rules like the filibuster let a minority slow or block the majority; House rules move faster — the same bill can face very different odds (GC.13).

Who Draws the Lines

Whoever controls redistricting can shape outcomes through gerrymandering, changing who wins without changing a single vote (GC.11).

Our Signature Move



One person, one vote started in Tennessee. Charles Baker, a voter from Shelby County (Memphis), sued because the state had not redrawn its legislative districts since 1901 — leaving a Memphis vote worth about one-eighth of a rural vote. In *Baker v. Carr* (1962) the Supreme Court ruled that federal courts could hear redistricting cases, opening the door to the 'one person, one vote' standard (GC.11).

TASK Tennessee's own unequal districts sparked a national rule. Investigate your current Tennessee state legislative district or U.S. House district — who represents it, and roughly how many people live there — and record what you find.

Predict • Play • Spiral

Predict First — open the unit

Predict first: Should a vote in the city count the same as a vote in the countryside? Write your gut answer now — you'll test it against Tennessee's own Baker v. Carr and the idea of 'one person, one vote.'

Warm-Up Play — Redistrict It!

4-minute map game (GC.11). Give teams a small grid 'state' of colored voters and ask them to draw the district lines so their side wins. Reveal how the same voters produce different winners depending only on where the lines go — gerrymandering, felt in four minutes.

Spiral — retrieve & connect

GC.10 → Unit 1 (GC.04, the Great Compromise)

Two senators per state + a House by population is the Great Compromise you studied in Foundations, now in action.

GC.13 → Unit 1 (GC.06, checks & balances)

The presidential veto and the override are checks & balances — retrieve the principle, then watch a bill run the gauntlet.

GC.14 → Unit 2 (GC.34, participation)

Contacting or petitioning your representative is the participation you practiced in Unit 2 — now you know who to contact.

Legislative Debate

- Cite the clause — point to Article I before you argue.
- Represent a position fairly before you rebut it.
- Disagree with the rule, not the person.
- One voice at a time; make room for the quiet voice.

Revisit the Essential Question

“How does Congress represent the people — and where do its powers begin and end?”

Students now have the sources, vocabulary, and reasoning to answer it — in a CER paragraph or the unit DBQ.

GC.35 · GC.10 · GC.11 · GC.12 · GC.13 · GC.14 · GC.15